



Placement and Residential Licensing Unit

P.O. Box 1437, Slot S140, Little Rock, AR 72203-1437

P: 501.682.8590 F: 501.683.6060 TDD: 501.682.1550

Notice of Serious Incident

Case Number: 029458

Date of Incident: 5/1/2025

Date Received: 5/2/2025

Facility Name: Delta Family Health and Fitness for Children

Facility Number: 172

Incident Type: Licensing

Report Description: Resident was admitted to [REDACTED] tonight from Delta Family Center RTC program. Resident states being physically aggressive with RTC staff today. Resident has red marks under her neck and on the left side of her neck. Resident states being choked/grabbed on the neck by a staff member during the physical altercation. Resident admits to hitting the staff member on the face, saying staff member was trying to place the resident in a restraint. Resident states "I took her to the ground. " Resident states the staff member was aggressive towards her so that's why the resident was aggressive back. The resident states the staff member did not hit her. Pictures were taken of the injuries on resident's neck.

Interim Action Narrative: Staff member has been suspended pending outcome of the investigation.

[REDACTED] Narrative:

Licensing Narrative: Licensing requested an ICA for the staff member mentioned in this complaint. Facility provided licensing with an ICA. Per facility, they were made aware by the Program Manager Lead Therapist that there had been a complaint filed against the staff member. The staff member is currently off duty until further notice and will not be returning to work until an ICA is approved and/or incident determined to be unfounded. 5/5/25-

Email sent to [REDACTED] for further information. [REDACTED]

[REDACTED] Resident will not be returning to facility. Email sent to facility to inquire if there is video of the incident 4/30/25. Received email from [REDACTED] with further information. 5/5/25-Restraint packet and nursing note reviewed. Nursing notes state there was redness to the neck area. Visit scheduled for 5/6/25 to review camera footage. 5/6/25-Facility visited. No citations. Licensing complaint is unfounded. 5/23/2025, case and documentation reviewed. Licensing reviewed camera footage on 5/6/2025. Complaint unfounded by licensing. Approved by Program Coordinator. Case complete. 6/13/25-Sent email inquiring about staff's employment status. 6/16/25-Received email from facility as follows: staff has been on medical leave as well. She contacted us this morning noting that she received her letter today stating allegations were unsubstantiated. She has not been to work since the incident due to her medical injury. She will continue medical leave until at least 6/20, when she returns to [REDACTED] They may determine medically she cannot return yet.



Division of Child Care & Early Childhood Education

P.O. Box 1437, Slot S140, Little Rock, AR 72203-1437

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521 Visit Compliance Report

Licensee: Delta Family Health and Fitness for Children

Facility Number: 172

Licensee Address: 815 EAST SAINT LOUIS STREET
HAMBURG AR 71646

Licensing Specialist: Clayton DeBoer

Person In Charge: Dean Hill II

Record Visit Date: 5/6/2025

Home Visit Date: 5/6/2025

Purpose of Visit: Complaint Visit

Regulations Out of Compliance:

Regulations Needing Technical Assistance:

Regulation Not Applicable:

Regulations Not Correctable:

Narrative:

Facility visited from 10:15AM-11:45AM for Case#29458. Census: 20

Video reviewed of incident 4/30/25. Resident 1 can be seen walking down the hallway towards Staff 1 and Staff 2. Resident 1 begins to punch Staff 1 in the face, landing 4 successful punches to Staff 1's face. During this assault, Staff 1 can be seen extending her arms as to protect herself while attempting with Staff 2 to get Resident 1 against the wall. During this exchange, Staff 1's hands are seen around Resident 1's chest and neck area. Staff 3 and Staff 4 quickly assist with restraint, taking Resident 1 to the ground. Resident 1 calms down without further incident. At no time did any staff seen in video act unprofessional, use excessive force, or act in a manner that would cause physical injury or threat of bodily harm towards Resident 1.

Staff 3 and 4 interviewed during today's visit who both state at no time did they see Staff 1 grab or choke Resident 1's neck during this incident. Staff 2 was not present for today's visit.

2 residents interviewed today who stated that they had never been in a restraint that involved nor witnessed a restraint where they observed staff hit, kick, punch or choke a resident.

Licensing received a copy of the critical incident report form dated 4/30/25, nursing progress notes from 4/19/25 to 4/30/25, physician order for the physical restraint on 4/30/25, and the client debriefing after the restraint on 4/30/25.

Licensing regulations reviewed:

109.1g: Unprofessional conduct in the practice of child welfare activities shall include without limitation: Engaging in behavior that could be viewed as sexual, dangerous, exploitative, or physically harmful to children.

905.4g: The following disciplinary actions shall not be used: Physical injury or threat of bodily harm.

905.9: Physical restraints shall be performed using minimal force and time necessary. Physical restraint means the application of physical force without the use of any device for the purposes of restraining the free movement of a resident's body. Briefly holding a child without undue force in order to calm or comfort or holding a hand to safely escort a child from one area to another, is not considered a physical restraint.

905.10: Physical restraint shall be initiated only by staff trained by a certified instructor in a nationally recognized curriculum, and only to prevent injury to the child, other people or property, and shall not be initiated solely as a form of discipline. The agency shall maintain documentation that staff is deemed competent in physical restraint.

Licensing Complaint Case#29458 has been investigated and determined to be UNFOUNDED;as evidenced by:At no time did Staff 1, or any staff involved in restraint seen in video, act unprofessional, use excessive force, or act in a manner that would cause physical injury or threat of bodily harm towards Resident 1. Restraint was initiated because Resident 1 was actively punching Staff 1 in the face. Nursing note following the incident does indicate redness around Resident 1's neck. It is uncertain from video seen if Staff 1 extending her arms to protect herself and attempt a restraint caused this redness. 2 staff seen in video, present for incident, stated that at no time did they witness Staff 1 grab or choke Resident 1's neck.

******* Pursuant to A.C.A. § 9-24-406(e)(3-4): If you believe that the Department's notice of noncompliance is in error, you may ask for reconsideration. The request for reconsideration must be in**

writing and delivered to the Department by certified mail within twenty (20) business days of receipt of the notice of noncompliance. The request must specify the parts of the notice that are alleged to be in error, explain why you believe those parts are in error, and include documentation to support the allegation of error. Once received the Department shall issue a decision on your request within twenty (20) days after receipt of the request.

Provider Comments:

CCL Staff Signature :

Date: 5/6/2025



Provider Signature :

Date: 5/6/2025

